

Licensing Committee**16:35 to 17:16****Thursday, 05 March 2026**

Present: Councillors Huntley (Chair), Kidman (Vice-Chair), Ackroyd, Carrington, Catt, Lawes and Stutely

Apologies: Councillors Calvert, Worley-Smith and Young

Absent: Councillors Maguire and Padda

In attendance Sarah Ashurst, Head of Planning and Regulatory Services
Vicki Hopps, Regulatory Services Manager
Annmarie O'Toole, Interim Licensing Team Leader
David Lowens, Legal Advisor

4. Declarations of interest

4.1 There were no declarations of interest.

5. Minutes

5.1 The minutes of the meeting, held on 4 December 2025 were confirmed as a correct record.

6. Draft Statement of Licensing Policy under the Licensing Act 2003

6.1 The Regulatory Services Manager presented the report. The report included an updated draft Statement of Licensing Policy under the Licensing Act 2003, the Council was required to have a policy and a reviewed policy was required to be adopted by December 2026. The updated draft included advice from solicitors specialised in Licensing legislation, the new national licensing policy framework and section 182 guidance. A Cumulative Impact Assessment would be carried out separately to the policy.

6.2 The Legal Advisor highlighted that the adoption of "agent of change" was unusual but would be possible for the Council to consider. The Regulatory Services Manager confirmed that the term was often used within planning but was included within the national policy framework for licensing. He highlighted that there was a

requirement to update point 7.1 and 7.4 of the draft policy as it included older wording, the updated wording should read “appropriate and proportionate” which would give a greater deal of discretion to the Council to impose conditions. The Committee agreed to this amendment.

- 6.3 The Committee discussed the issue of statutory nuisance and the Regulatory Services Manager confirmed that statutory nuisance also concerned premises and the guidance suggested that the Statement of Licensing Policy should not duplicate other policies or legislation.
- 6.4 A member suggested that the possible conditions on signage could be strengthened to ensure that these were more easily legible. This could be considered as part of the consultation period.
- 6.5 A concern was highlighted that the current policy did not cover the inspection of logbooks that premises were required to hold. The Committee agreed that wording should be considered that responsible authorities were able to inspect logbooks and the period for which a logbook should be retained.
- 6.6 In response to a member question the Legal Advisor and Regulatory Services Manager confirmed that the draft policy had been updated following the publication of the national policy framework in November 2025, the recent changes to the s182 guidance would be included as part of the consultation period.
- 6.7 A member queried what assessment was done when there were several premises in close proximity to one another. In response the Regulatory Services Manager said that cumulative impact was something that could be explored through the consultation on the policy.
- 6.8 The Committee noted that a number of paragraphs within section 3 would be renumbered as there had been a typographical issue.
- 6.9 In response to a question from the Chair the Regulatory Services Manager confirmed that the changes made in relation to Motions were around super-strength alcohol and a draft motion which considered the safety of staff leaving late-night premises and encouraging premises to consider providing free transport.
- 6.10 A member commented that more of the policy could explore what additional safeguards could be put in place to protect women and girls from harm, such as anti-spiking controls, door supervisor expectations, clear reporting mechanisms for victims and staff, greater management accountability and licence review triggers. The specific details would be provided as part of the consultation process. The Legal Advisor highlighted that where an operating schedule was submitted and there were no objections there was no ability to impose conditions. The conditions would need to be appropriate, proportionate and enforceable which was the test for conditions. An example for this was that a smaller venue may conduct a risk assessment as to whether SIA personnel were required, the Police usually considered this as an appropriate condition, a licensing hearing would need to have good reason to depart from the advice of the Police. In terms of clear review triggers, there was a current freedom for anyone to request the review of a licence which was not often used. The only conditions that could be imposed outside of a

hearing were the mandatory conditions. The suggested safeguards could, if appropriate, be included within the model conditions that applicants could consider as part of their application.

6.11 RESOLVED to:

- 1) Recommend to Cabinet the proposed amendments to the draft Norwich City Council Statement of Licensing Policy with the following additional amendments:
 - a. Update paragraphs 7.1 and 7.4 of the Draft Policy to read “appropriate and proportionate” as opposed to “necessary and proportionate”.
 - b. Explore wording around the legibility of signage at premises
 - c. Explore wording in relation to the retention and inspection of logbooks by responsible authorities.
 - d. Ensure that the paragraph numbering in section 3 was updated.
- 2) Recommend that Cabinet agree to commence a public consultation on the proposed draft policy and fees for a 12-week period from 11 May 2026 to 7 August 2026.
- 3) Recommend that Cabinet considers exploring additional steps to address the safety of women and girls through the consultation process.

CHAIR